

Amendment No. 2 to HB0754

Hicks G
Signature of Sponsor

AMEND Senate Bill No. 676*

House Bill No. 754

by adding the following as a new subsection (i) in SECTION 2:

(i) The department of commerce and insurance shall, within ninety (90) days of the effective date of this act, apply to the federal centers for medicare and medicaid services (CMS) for a waiver pursuant to 45 CFR § 156.111 to allow the department to add detransition procedures to the state's essential health benefits (EHB) for qualified health plans (QHPs) offered on the marketplace exchange.

AND FURTHER AMEND by deleting subsection (b) in SECTION 2 and substituting instead:

(b)

(1) If an insurance policy that is offered outside of the marketplace exchange and that is issued, renewed, or amended in this state on or after the effective date of this act, includes coverage for gender transition procedures, then the policy must also include coverage for detransition procedures.

(2) Upon approval and implementation of the waiver sought in subsection (i), if an insurance policy that is offered on the marketplace exchange and that is issued, renewed, or amended in this state on or after the effective date of the approved change to the state's EHB, includes coverage for gender transition procedures, then the policy must also include coverage for detransition procedures.

AND FURTHER AMEND by deleting the word "and" at the end of subdivision (a)(1) in SECTION 2, deleting the period at the end of subdivision (a)(2) in SECTION 2 and substituting instead "; and", and adding the following as a new subdivision (a)(3) in SECTION 2:

(3) "Marketplace exchange" means the federal health insurance marketplace or federal health benefit exchange.

AND FURTHER AMEND by deleting "December 31, 2025" wherever it appears in SECTIONS 1 and 2 and substituting instead "December 31, 2026".